

ARIZA v LAKESIDE VENTURES, LLC, et al.

22CV46059

**DEFENDANT'S MOTION TO EXPUNGE LIS PENDENS
OR
REQUIRE PLAINTIFF TO FILE UNDERTAKING**

This matter involves a dispute over the sale of a mobile home estate located at 1475 Railroad Flat Road, Mokelumne Hill, CA ("Mobile Home Estate.") The factual and procedural history of this lengthy dispute has been set forth in detail in multiple rulings. The following is relevant to the instant motion.

On April 3, 2023, Plaintiff Helen Ariza ("Plaintiff") filed a First Amended Complaint against multiple defendants including Arthur Trillo ("Trillo"). As against Trillo, Plaintiff brought causes of action for quiet title and intentional interference with contract. On January 19, 2024, the Court granted a motion for preliminary injunction filed by Defendants Scott Nordyke ("Nordyke") and Trillo. Pursuant to that ruling, Plaintiff was ordered to refrain from representing that she was an owner of the Park, had authority to collect rents, to evict tenants, to make alterations to the Park, to incur debts related to the Park or to solicit tenants to file complaints against the Park.

On March 26, 2024, Plaintiff recorded a lis pendens against Trillo's personal real property located at 7310 Conner Drive Valley Springs, California, 95252 (Motion to Expunge Ex. A.) The lis pendens does not include the Park.

On April 4, 2025, the Court denied Plaintiff's first motion to vacate the preliminary injunction, finding that Plaintiff provided no facts of law that would authorize the Court to vacate the injunction based on her allegations. The Court denied a second motion to vacate the preliminary injunction on August 15, 2025.

Now before the Court is Trillo's motion to expunge the lis pendens against his personal real property.

Code Civil Procedure section 405.30 provides, in relevant part:

At any time after notice of pendency of action has been recorded, any party, or any nonparty with an interest in the real property affected thereby, may apply to the court in which the action is pending to expunge the notice... Evidence or declarations may be filed with the motion to expunge the notice. The court may permit evidence to be received in the form of oral testimony, and may make any orders it deems just to provide for discovery by any party affected by a motion to expunge the notice. The claimant shall have the burden of proof under Sections 405.31 and 405.32.

There are four bases upon which expungement can be granted: 1) the lis pendens is void and invalid (§405.23), 2) the action as pleaded does not contain a real property claim (§405.23), 3) the claimant fails to establish the probable validity of the claim (§405.32), and 4) monetary relief provides an adequate remedy (§405.33.)

Section 405.4 provides, “ ‘Real property claim’ means the cause or causes of action in a pleading which would, if meritorious, affect (a) title to, or the right to possession of, specific real property... .” As the opposing party, plaintiff “has the burden of showing the existence of a real property claim.” (*Newell v. Superior Court of Los Angeles County* (2024) 107 Cal.App.5th 728, 735.)

Plaintiff fails to meet her burden. The FAC alleges a conflict regarding the Park. The FAC is devoid of any reference related to Trillo’s real property located at 7310 Conner Drive Valley Springs, California, 95252. Accordingly, the second basis for expungement applies here because Plaintiff’s action does not contain a real property claim against the property subject to the lis pendens. The Court is therefore mandated to expunge the lis pendens and cannot order an undertaking as a condition of expungement.

Code of Civil Procedure section 405.38 provides, “The court shall direct that the party prevailing on any motion under this chapter be awarded the reasonable attorney’s fees and costs of making or opposing the motion unless the court finds that the other party acted with substantial justification or that other circumstances make the imposition of attorney’s fees and costs unjust.”

Plaintiff points out that Trillo is self-represented. Generally, a pro se defendant cannot recover attorney’s fees. (*Leiper v. Gallegos* (2021) 69 Cal.App.5th 284.) However, Trillo presents evidence that he was previously represented and spent \$2,945.00 in attorney’s fees for a letter to Plaintiff demanding that the lis pendens be removed. (Declaration of Rachel Renmo (“Renmo Decl.”) ¶ 4, Ex. C to motion.) Ms. Renmo also avers that she

provided consultation in drafting the instant motion which cost Trillo \$2,000 in attorney's fees.

Trillo presents no legal authority that would allow the Court to award a pro se litigant the cost of "consultant" attorney's fees. More importantly, the Court concludes that Plaintiff had substantial justification for filing the lis pendens on Trillo's property as she was – albeit erroneously -- attempting to protect against the potential loss of assets that could be used to pay her if she prevailed on her case. Accordingly, the motion for attorney's fees is denied.

The motion to expunge the lis pendens is **GRANTED**. The motion for attorney's fees is **DENIED**.

The clerk shall provide notice of this ruling to the parties forthwith. The Court intends to sign the submitted proposed Order, modified to conform with the foregoing.

KILMADE v KAISER ENTERPRISES, INC.

24CV47369

PLAINTIFF'S MOTION FOR PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT

Koll Kilmade as the representative plaintiff ("Plaintiff"), filed this class action lawsuit against Kaiser Enterprises, Inc. ("Defendant"). Plaintiff's Complaint alleges causes of action for wage and hour violations, including failure to pay overtime wages, wage statement violations, waiting time penalties and unfair competition. Plaintiff seeks penalties and damages under the Labor Code, Business and Professional Code, and the Private Attorney General's Act ("PAGA").

Plaintiff reports the matter has settled and moves for preliminary approval of settlement agreement ("Agreement"). (Code Civ. Proc., § 382, Cal. Rules of Court, rule 3.769.) Plaintiff has failed to file a proposed order with the motion as required by Cal Rule of Court 3.769(c). However, in the interest of judicial efficiency, and because the motion is unopposed, the Court will consider the substance of the motion.

I. Settlement Approval Process

There are three stages to the Court's settlement approval process: (1) preliminary approval of the proposed settlement at an informal hearing; (2) notice of the settlement to all affected class members; and (3) final approval after a formal hearing. The current motion is the first stage of the process. The Court may approve settlements reached before or after certification of the class. (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 240, disapproved on another ground in *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260, 269.) Here, the class was not certified prior to the settlement, and Plaintiff seeks class certification at this time. The certification issue is addressed below.

When an action includes PAGA claims, the Court must review and approve the settlement and the proposed settlement shall be submitted to the Labor and Workforce Development Agency (LWDA) at the same time that it is submitted to the Court. (Lab. Code, § 2699, subd. (l)(2).) Plaintiff has provided the necessary notice to the LWDA.